

Before the
FEDERAL MARITIME COMMISSION

FRANCIS SHEKA KANU,

Complainant,

v.

EJIKE DICKSON EZE, SEALINES INTERNATIONAL,
SEAMATES INTERNATIONAL, INC., and MAERSK,

Respondents.

DOCKET NO. 25-05

**ANSWER TO COMPLAINT WITH
AFFIRMATIVE DEFENSES AND CROSS-CLAIM**

Respondents, SeaLines International (“SeaLines”) and SeaMates International, Inc. (“SeaMates”)(SeaLines and SeaMates collectively “SeaLines Respondents”), by their attorneys, Betancourt, Greco & Evans LLC, as and for their answer to the Complaint filed with the Federal Maritime Commission (the “Commission”) allege upon information and belief as follows:

1. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph I of the Complaint.
2. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph II(a) of the Complaint.
3. Deny the allegations in paragraph II(b) of the Complaint and state that:
 - a) SeaLines is a New Jersey corporation with a place of business located at 301 E. Main Street, Suite 1-B, Cherryville, North Carolina; and

b) SeaMates is a New Jersey corporation with a principal place of business located at 316 Main Street, East Rutherford, New Jersey.

4. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph II(c) of the Complaint.

5. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph II(d) of the Complaint but state that SeaLines is a non-vessel operating common carrier licensed by the Commission and SeaMates is a non-vessel operating common carrier and ocean freight forwarder licensed by the Commission.

6. Deny the allegations in paragraph III of the Complaint.

7. Deny knowledge or information sufficient to form a belief as to the allegations contained in the unnumbered paragraph between paragraphs III and IV of the Complaint.

8. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV A. of the Complaint and note that no document was attached to the Complaint.

9. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV B. of the Complaint.

10. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV C. of the Complaint.

11. The allegations contained in Paragraph IV D. of the Complaint are conclusions of law properly resolvable by the Commission. To the extent they are not conclusions of law, SeaLines Respondents deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV D.

12. The allegations contained in Paragraph IV E. of the Complaint are conclusions of law properly resolvable by the Commission. To the extent they are not conclusions of law, SeaLines Respondents deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV E.

13. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV F. of the Complaint.

14. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV G. of the Complaint.

15. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV H. of the Complaint.

16. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV I. of the Complaint.

17. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV J. of the Complaint.

18. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV K. of the Complaint.

19. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV L. of the Complaint.

20. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV M. of the Complaint.

21. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV N. of the Complaint.

22. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV O. of the Complaint.

23. The allegations contained in Paragraph IV P. of the Complaint are conclusions of law properly resolvable by the Commission. To the extent they are not conclusions of law, SeaLines Respondents deny the allegations contained in paragraph IV P, including the allegations in each of subparagraphs 1(a) through 1(c); 2(a) through 2(b); 3(a) through 3(c) and 4.

24. Deny knowledge or information sufficient to form a belief as to the allegations contained in paragraph IV Q. of the Complaint.

25. The allegations contained in Paragraph VII of the Complaint are conclusions of law properly resolvable by the Commission. To the extent they are not conclusions of law, SeaLines Respondents deny the allegations contained in paragraph VII of the Complaint.

FIRST AFFIRMATIVE DEFENSE

26. The Complaint fails to state a claim upon which relief may be granted and/or fails to state legal causes of action.

SECOND AFFIRMATIVE DEFENSE

27. Complainant has failed to state a claim for which relief may be granted because the Commission's interpretation of the purported Shipping Act violations may not be lawfully applied to conduct which occurred before the interpretation was adopted.

THIRD AFFIRMATIVE DEFENSE

28. Without waiving any other defenses, the SeaLines Respondents deny that the Commission possesses subject matter jurisdiction over all or some of Complainant's claims and

causes of action. Complainant alleges breaches of its contract with the SeaLines Respondents. However, 46 U.S.C. § 40502(f) provides that the exclusive remedy for alleged breaches of a contract is "an action in an appropriate court," not before the Commission.

FOURTH AFFIRMATIVE DEFENSE

29. The Complaint alleges breach of contract issues and not Shipping Act violations.

FIFTH AFFIRMATIVE DEFENSE

30. This Answer is made without waiver of any jurisdictional defenses or rights to proceed in another forum as agreed to by the parties.

SIXTH AFFIRMATIVE DEFENSE

31. The shipments at issue were subject to the terms, conditions, limitations, and defenses available by reason of provisions contained in bills of lading, sea waybills, contracts of carriage, charter-parties, slot charters, vessel sharing agreements, service contracts, inter-modal contracts, dock receipts, delivery orders, special contracts, applicable tariffs and applicable law such as the Carriage of Goods by Sea Act of 1936 ("COGSA").

SEVENTH AFFIRMATIVE DEFENSE

32. The SeaLines Respondents did not commit any Shipping Act violations and are thus not liable to Complainant on the causes of action alleged in the Complaint.

EIGHTH AFFIRMATIVE DEFENSE

33. The SeaLines Respondents violated no legal duties owing to Complainant.

NINTH AFFIRMATIVE DEFENSE

34. Complainant's claims are barred by the applicable statute of limitations including any statute of limitations contained in COGSA, the contractual terms between the parties and/or the doctrine of laches.

TENTH AFFIRMATIVE DEFENSE

35. Complainant's claims and causes of action are barred in whole or in part by the doctrines of waiver and/or estoppel.

ELEVENTH AFFIRMATIVE DEFENSE

36. The contract was impossible and/or commercially impracticable to perform due to factors beyond the parties' control.

TWELFTH AFFIRMATIVE DEFENSE

37. The Complaint fails to allege the essential elements of the Shipping Act, including 46 U.S.C. §§ 41102(c), 41104(a)(4) and 41102(a).

THIRTEENTH AFFIRMATIVE DEFENSE

38. The claimed Shipping Act violations, which are denied, were neither customary nor continuous.

FOURTEENTH AFFIRMATIVE DEFENSE

38. The SeaLines Respondents' actions and practices were not unjust or unreasonable.

FIFTEENTH AFFIRMATIVE DEFENSE

39. The alleged conduct which is the subject to the Complaint does not constitute a practice within the meaning of 46 U.S.C. § 41102(c).

SIXTEENTH AFFIRMATIVE DEFENSE

40. The SeaLines Respondent's practices and actions were not the proximate cause of Complainant's alleged damages.

SEVENTEENTH AFFIRMATIVE DEFENSE

41. Complainant is guilty of culpable conduct in the events giving rise to the claims asserted in the Complaint, and Complainant's recovery, if any, must be diminished in proportion thereto.

EIGHTEENTH AFFIRMATIVE DEFENSE

42. Complainant's alleged losses, damages, and/or charges and expenses suffered by or in connection with the shipment as alleged in the Complaint, which are denied, were caused in whole or in part by the fault, design or neglect, dereliction or want of care of the Complainant, its agents, servants, and/or employees and/or those in charge for whom Complainant is responsible.

NINETEENTH AFFIRMATIVE DEFENSE

43. If Complainant was injured in the manner and for the reasons alleged by Complainant, which is denied, its injuries were caused in whole or in part by its own negligence or the negligence of others for whose negligence the SeaLines Respondents are not liable.

TWENTIETH AFFIRMATIVE DEFENSE

44. If Complainant was damaged as alleged, which is denied, the damages were caused in whole or in part by an intervening and/or superceding cause for which the SeaLines Respondents are not liable.

TWENTY-FIRST AFFIRMATIVE DEFENSE

45. Complainant's claims are barred or their damages, if any, are to be reduced by virtue of the doctrines of assumption of risk and/or comparative negligence.

TWENTY-SECOND AFFIRMATIVE DEFENSE

46. Complainant's alleged damages, which are denied, resulted from circumstances and conditions beyond the control of Respondents.

TWENTY-THIRD AFFIRMATIVE DEFENSE

47. Complainant's alleged damages were caused by Restraints of Princes, Acts of God, and/or Force Majeure, and Respondents thus have no liability for Complainant's alleged damages.

TWENTY-FOURTH AFFIRMATIVE DEFENSE

48. Complainant knowingly and intentionally assumed any and all risks inherent in the shipment of the goods by sea, which is a complete bar to recovery.

TWENTY-FIFTH AFFIRMATIVE DEFENSE

49. Complainant failed to mitigate its damages.

TWENTY-SIXTH AFFIRMATIVE DEFENSE

50. The Commission does not have authority to adjudicate Complainant's claims.

TWENTY-SEVENTH AFFIRMATIVE DEFENSE

51. Respondents are entitled to and demand a trial by jury.

WHEREFORE, the SeaLines Respondents demand judgment dismissing each and every count and cause of action of Complainant's Complaint and awarding Respondents costs, disbursements, interest, and attorneys' fees in this action, and such other further and different relief as the Commission may deem just and proper.

FIRST CROSS-CLAIM AGAINST MAERSK

52. The SeaLines Respondents repeat and reallege each and every allegation contained in paragraphs 1 through 51 hereof with the same force and effect as if set forth herein at length.

53. If Complainant suffered any of the damages and losses set forth in the Complaint as a result of Shipping Act violations, said allegations being specifically denied as they relate to the SeaLines Respondents, and if the SeaLines Respondents are adjudged liable to Complainant, then such liability and/or damages and losses were caused by the active and primary carelessness, negligence, breach of duty, fault, acts, omissions or Shipping Act violations of co-respondent Maersk. And, should any judgment be recovered herein by Complainant against the SeaLines Respondents, co-respondent Maersk should be liable to the SeaLines Respondents in whole or in part for the amount of such damage or loss based on apportionment of liability, indemnity and/or contribution.

WHEREFORE, the SeaLines Respondents demand judgment dismissing each and every count and cause of action of Complainant's Complaint, but if there is a judgment against the SeaLines Respondents, then the SeaLines Respondents should be awarded judgment over and against co-respondent Maersk on the First Cross-Claim for indemnification and/or contribution together with costs, disbursements, interest, and attorneys' fees in this action, and such other further and different relief as the Commission may deem just and proper.

**RESERVATION OF RIGHTS TO ENFORCE THE
FORUM SELECTION CLAUSE IN THE CONTRACTS AT ISSUE**

The SeaLines Respondents do not waive and expressly reserve the right to seek enforcement of the forum selection clause and/or choice of law clause contained in the applicable contracts at issue.

**RESERVATION OF RIGHTS TO AMEND THE
ANSWER AND/OR TO BRING A THIRD-PARTY CLAIM**

Respondents do not waive and expressly reserve the right to amend this Answer and Cross-Claim and/or to plead any additional affirmative defenses and/or to bring third-party claims as the facts may warrant.

REQUEST FOR ORAL HEARING

Respondents respectfully request an oral hearing in Washington, D.C.

Dated: Red Bank, New Jersey
September 12, 2025

BETANCOURT, GRECO & EVANS LLC
Attorneys for Respondents SeaLines International,
Inc. and SeaMates International, Inc.

By: s/ John Greco
John Greco
151 Bodman Place, Suite 200
Red Bank, New Jersey 07701
Telephone: 732-530-4646
Telefax: 732-530-9536
E-mail: jgreco@bge-law.com

CERTIFICATE OF SERVICE

I certify, under penalty of perjury, that on this 12th day of September, 2025 the foregoing Answer to Complaint with Affirmative Defenses and Cross-claim was served via electronic mail on:

Francis Sheka Kanu at:	francesgats@gmail.com
and by first class mail to:	Francis Sheka Kanu 6042 The Plaza Charlotte, NC 28215
Ejike Dickson Eze at:	ejikeinternational89@gmail.com
and by first class mail to:	Ejike Dickson Eze 1000 Montana Drive Charlotte, NC 28215
George W. Wright at:	gwright@wright-associate.com
Narinder S. Parmar at:	nparmar@wright-associate.com

the addresses set forth in the Notices of Appearance and Answers on file with the Commission in this case.

/s/ John Greco
John Greco